

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                     |                           |                                                        |                                               |                                 |
|---------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Chelsea Yogerst                  | Team:<br>Team # 3                   | CCRB Case #:<br>201411231 | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 11/05/2014 9:30 AM | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>5/5/2016    | Precinct:<br>110                                       |                                               |                                 |
| Date/Time CV Reported<br>Wed, 11/05/2014 10:51 AM | CV Reported At:<br>CCRB             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 11/05/2014 10:51 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s) | Shield | TaxID  | Command |
|--------------------|--------|--------|---------|
| 1. POM Don Brown   | 08900  | 941191 | 110 PCT |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. LT Jose Briceno    | 00000     | 934556 | 110 PCT  |
| 2. POM Ishmael Bailey | 02884     | 947713 | 110 PCT  |

| Officer(s)           | Allegation                                                               | Investigator Recommendation |
|----------------------|--------------------------------------------------------------------------|-----------------------------|
| A . POM Don Brown    | Abuse: PO Don Brown stopped the car in which § 87(2)(b) was an occupant. | A . Exonerated              |
| B . POM Don Brown    | Discourtesy: PO Don Brown spoke rudely to § 87(2)(b)                     | B . Unsubstantiated         |
| C . POM Don Brown    | Discourtesy: PO Don Brown acted rudely toward § 87(2)(b) and § 87(2)(b)  | C . Unsubstantiated         |
| § 87(4-b) § 87(2)(g) |                                                                          |                             |

### Case summary

On November 5, 2014, at approximately 9:00 a.m., § 87(2)(b) was waiting in the lobby of § 87(2)(b) in Corona for his sister § 87(2)(b) to pick him up. As § 87(2)(b) approached § 87(2)(b) she called § 87(2)(b) to come outside. As § 87(2)(b) was exiting the lobby, he saw a RMP driven by PO Don Brown, of the 110<sup>th</sup> Precinct, drive around § 87(2)(b)'s vehicle and cut her off. PO Brown allegedly stopped his car in front of § 87(2)(b)'s car which forced her to abruptly brake and park parallel to parked cars (**Allegation A**). PO Brown's vehicle did not have lights or sirens on.

As § 87(2)(b) walked outside of the lobby towards § 87(2)(b)'s vehicle, PO Brown exited his RMP and asked § 87(2)(b) for her driver's license. § 87(2)(b) then approached PO Brown and asked PO Brown what was wrong. PO Brown allegedly responded, "Back the fuck up" (**Allegation B**).

§ 87(2)(b) did not respond, walked to the back of § 87(2)(b)'s vehicle and called 911. § 87(2)(b) requested a superior or higher ranking officer while on the phone with the 911 operator. While § 87(2)(b) was on the phone, he saw PO Brown give § 87(2)(b) a summons for double parking and then drive away. As PO Brown began to drive away, he allegedly stuck his middle finger out of the window while looking at § 87(2)(b) and § 87(2)(b) through the window (**Allegation C**).

§ 87(2)(b) and § 87(2)(b) proceeded to wait for officers to arrive in response to the 911 call. While waiting, PO Brown slowly drove back down § 87(2)(b) laughing at § 87(2)(b) and § 87(2)(b) as he passed them. PO Brown then drove and passed them again, one or two additional times.

Approximately fifteen to twenty minutes after § 87(2)(b) had called 911, LT Jose Briceno and PO Ishmael Bailey, also of the 110<sup>th</sup> Precinct, arrived in a marked RMP. While § 87(2)(b) and LT Briceno stood in front of § 87(2)(b)'s vehicle and discussed the incident, LT Briceno asked § 87(2)(b) what PO Brown looked like. Just as § 87(2)(b) was about to describe PO Brown, he saw PO Brown drive down § 87(2)(b) again. § 87(2)(b) pointed PO Brown out to LT Briceno. LT Briceno then walked into the road and put his hands up, signaling for PO Brown to stop. He then told PO Brown to pull over.

LT Briceno sent PO Bailey to speak to PO Brown while LT Briceno informed § 87(2)(b) of the ways in which he could file a complaint. § 87(2)(b) asked LT Briceno for PO Brown's shield number, as the shield number and name on the double parking summons was illegible. LT Briceno spoke to PO Brown briefly and returned with PO Brown's name and shield number.

§ 87(2)(g)

### Mediation, Civil and Criminal History

§ 87(2)(b) was offered mediation, but preferred to pursue investigation § 87(2)(b)

On February 11, 2015, a notice of claim inquiry was sent electronically to the New York City Comptroller's Office and is pending a response (encl. K-1).

§ 87(2)(b), § 87(2)(g)

### **Civilian and Officer CCRB History**

- PO Brown has been a member of the service for 8 years and had one other case where an allegation of threat of arrest was closed as complainant uncooperative § 87(2)(g).
- This is the first CCRB complaint filed involving § 87(2)(b) and § 87(2)(b) (encl. A-2-A-3)

### **Additional Officers**

- LT Jose Briceno and PO Ishmael Bailey were not interviewed § 87(2)(g).

### **Explanation of Subject Officer Identification**

- § 87(2)(b) provided PO Brown's name and shield number during his initial phone statement. He received the name and shield number from LT Briceno at the incident. PO Brown matched the description that § 87(2)(b) provided and acknowledged that he wrote § 87(2)(b) the summons.

### **Video Footage**

- On November 28, 2014, surveillance video footage was obtained from the § 87(2)(b) the superintendent of § 87(2)(b). The video footage shows a marked RMP park in front of a double parked vehicle. An officer, determined by the investigation to be PO Brown, exits the RMP and approaches the parked car. While PO Brown is next to the parked vehicle, an individual determined by the investigation to be § 87(2)(b) exits a neighboring building and proceeds to approach PO Brown and the parked vehicle. PO Brown gives the driver of the parked car, determined by the investigation to be § 87(2)(b) a summons. He then walks back to his RMP, and pulls out of his parking spot. As he is driving away, PO Brown briefly sticks his hand out of the car window.

### **Findings and Recommendations**

**Allegation A-Abuse of Authority: PO Don Brown stopped the car in which § 87(2)(b) was an occupant.**

In the statement she provided to the CCRB on November 10, 2014 (encl. C-1-C-5), § 87(2)(b) § 87(2)(b) alleged that a marked RMP occupied by PO Brown, which was approximately half a block ahead of her, reversed and parked in front of her car, forcing her to stop.

In the statement he provided to the CCRB on November 10, 2014 (encl. D-1-D-7), § 87(2)(b) § 87(2)(b) alleged that PO Brown drove around § 87(2)(b)'s vehicle, cutting her off. PO Brown then stopped his car in front of her car, forcing her to abruptly brake and park parallel to parked cars.

In the statement he provided to the CCRB on November 25, 2014 (encl. E-1-E-6), PO Brown testified that he observed § 87(2)(b)'s vehicle double parked for at least 20 seconds. He then proceeded to park in front of the vehicle, which was still running, and approach the vehicle.

According to *People vs. Robinson*, 97 N.Y.2d 638 (2001), an officer may lawfully stop a vehicle when he has probable cause to believe that an individual has violated Vehicle and Traffic Law (encl. AA-1). According to Article 32, Section 1202, subsection 1a of the New York State Vehicle and Traffic Law, it is prohibited for a vehicle to be double-parked (encl. AA-2-AA-5).

§ 87(2)(g)  
The video footage shows § 87(2)(b)'s vehicle double parked and fully stopped when PO Brown reversed and stopped in front of it. The footage also shows that the RMP that PO Brown was driving had its lights on during the stop. § 87(2)(g)  
In addition, § 87(2)(b) stated the RMP that PO Brown was driving did not have its lights on during the stop.

§ 87(2)(g)  
. Therefore, it is recommended that **Allegation A** be closed as *exonerated*.

**Allegation B-Discourtesy: PO Don Brown spoke rudely to § 87(2)(b)**

§ 87(2)(b) stated that § 87(2)(b) approached PO Brown and asked him why he was issuing a summons. § 87(2)(b) could not understand PO Brown's response but alleged that PO Brown said, "Fuck you" to § 87(2)(b)

§ 87(2)(b) alleged that when asked PO Brown what was wrong, PO Brown responded by saying, "Back the fuck up."

PO Brown testified that after § 87(2)(b) asked him why he was issuing § 87(2)(b) a summons, he did not respond. Additionally, PO Brown denied saying "Back the fuck up" or using any profanity towards § 87(2)(b)

§ 87(2)(g)  
Therefore, it is recommended that **Allegation B** be closed as *unsubstantiated*

**Allegation C- Discourtesy: PO Don Brown acted rudely toward § 87(2)(b) and**

§ 87(2)(b)  
§ 87(2)(b) alleged when PO Brown drove away, he stuck his middle finger out the window.

§ 87(2)(b) also alleged that when PO Brown drove away, he stuck his middle finger out of the window while looking at § 87(2)(b) and § 87(2)(b) through the window.

During his second interview at the CCRB on March 4, 2015, PO Brown stated that he had no further interaction with either § 87(2)(b) or § 87(2)(b) after he returned to his vehicle and continued with his enforcement. He denied that he ever stuck his hands out of his window of his vehicle after giving § 87(2)(b) a summons and denied that he made any obscene gestures towards any other civilians.

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegation C** be closed **unsubstantiated**.

[REDACTED]

[REDACTED]  
[REDACTED]  
[REDACTED]

[REDACTED]  
[REDACTED] [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

[REDACTED]

Page 5  
CCRB Case # 201411231

Investigator: \_\_\_\_\_  
Signature                      Print                      Date

Supervisor: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date